

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 3, 2026

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
		9:01 CALENDAR	
9:01 LINE 1	21CV377860	George Jones vs Michael Liddle et al	Hearing: Claim of Exemption & Petition for Judgment The currently unopposed Opposition to the Claim of Exemption and Petition for Judgment Determining Third Party Claims are GRANTED. Assignee shall prepare and submit the final order and proposed judgment, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.
9:01 LINE 2	24CV452257	Crown Asset Management, LLC vs Artemio Ramos	Motion: Withdraw as Attorney Good cause appearing, the unopposed motion is GRANTED. The Court will sign the previously submitted Form MC-053. The 6/15/2026 court trial is VACATED. The matter shall be set for a Trial Setting Conference on June 17, 2026, at 11:00 a.m. in Department 13. Withdrawing attorney shall give notice of the Court's rulings and orders within 2 days of the date of the hearing on the motion to withdraw.

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Calendar Line 1 & 2

Case Name: *FREDI CUELLAR et al vs MATILDA TRAINOR et al*

Case No.: 23CV417950

Defendants move to compel further responses to Requests for Production, Set Two, and Special Interrogatories, Set Two.

Meet and Confer

To begin, the Court is not persuaded by Plaintiff's assertion that Defendants failed to properly meet and confer. In fact, the Court finds Plaintiff to be the more guilty party in this regard.

Although the Court is never impressed with meet and confer correspondence couched in terms of a "demand" and/or setting a 24-hour "deadline," Defendants' correspondence did set forth the bases for their concerns, and after the process began, Plaintiff more than once indicated that a response to Defendants' meet and confer effort would be provided - first prior to February 6, 2026, then by February 13, 2026. The promised response did not materialize. It appears that it was not until February 20, 2026, the final date for filing the motion to compel, that Plaintiff's counsel stated he could "talk." Nowhere in the correspondence before the Court did Plaintiff's counsel raise or specifically allude to any of his points in opposition to Defendants' position that the Court's May 23, 2025, order makes resolution of the issues simple. Waiting until the date the motion must be filed, two weeks after a response was initially promised, and then simply offering a live or telephonic conversation was too little and too late. Plaintiff is correct that as of January 1, 2026, a motion to compel shall be accompanied by a declaration showing "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) In lieu of demands and deadlines, Defendants' correspondence should have included such an offer, which could have then been memorialized in a compliant declaration if things could not be resolved. Under these circumstances, however, the Court will not hold Defendants to the letter of section 2016.040. Although these motions were filed February 20, 2026, the initial meet and confer process began in 2025. More importantly, Defendants here need not be held to an in person, telephonic, or videoconference standard to informally resolve each issue presented by the motion when Plaintiff never informs them what the issues are despite promises to do so.

To the contrary, the Court finds no tangible effort by Plaintiff to engage in a substantive meet and confer process until the date that the motion was due. This alone may be sufficient grounds to grant the motion. But here, the Court also believes Defendants should prevail on the merits.

Requests for Production

Defendants seek an order compelling production of the full, unredacted documents for RPD Nos. 40 and 41, redactions that conceal payor, booking, and traveler companion details.

Plaintiff represented that "subject to" objection he would comply and produce documents for RPD Nos. 40-41. Having agreed to produce, Plaintiff was not entitled to then redact responsive information without at minimum taking certain steps. Here, Plaintiff did not